Document: Brussels wants power to enforce consumer rules on major EU-wide cases

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By Eliza Gkritsi, Sebastian Starcevic · Nov 10, 2026, 7:37 PM · View in your browser

The European Commission plans to have direct enforcement powers in consumer protection cases that could affect a large majority of the population, according to a Commission presentation obtained by POLITICO.

The Commission is set to present a major revamp of its consumer rules Wednesday, with new regulations around manipulative and addictive design on websites, according to another document obtained by POLITICO.

The presentation outlines how a new enforcement mechanism will work for different types of cases. The Commission is giving itself the power to enforce suspected breaches of consumer law when they affect 2/3 of EU countries and 2/3 of the overall population. Otherwise, national regulators will have enforcement responsibility, as they also will in all cases involving small and medium enterprises suspected of violating consumer laws.

The EU executive won't be obliged to take up the large cases, the presentation indicates, confirming earlier reporting by POLITICO.

These new powers will be used to enforce the Digital Fairness Act, the Geo-Blocking Regulation, Portability Regulation and passenger rights rules.

The Commission set a target deadline for each investigation, with a final position expected to come 12 months after a case is initiated.

For the cross-border cases investigated by the Commission under the DFA, fines can reach 6% of a company's annual global revenue.

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